Roe v. Wade

Justice Harry Blackmun, for the Court · January 22, 1973

Source: Roe v. Wade, 410 U.S. 113 (1973). Public domain. The Court's holding on the right to privacy and the trimester framework.

> The Supreme Court held that the constitutional right to privacy is broad enough to include a woman's decision whether to terminate her pregnancy, and set out the trimester framework balancing that right against the state's interests.

State criminal abortion laws, like those involved here, that except from criminality only a life-saving procedure on the mother's behalf without regard to the stage of her pregnancy and other interests involved violate the Due Process Clause of the Fourteenth Amendment, which protects against state action the right to privacy, including a woman's qualified right to terminate her pregnancy. Though the State cannot override that right, it has legitimate interests in protecting both the pregnant woman's health and the potentiality of human life, each of which interests grows and reaches a ‘compelling’ point at various stages of the woman's approach to term.

[. . .]

(a) For the stage prior to approximately the end of the first trimester, the abortion decision and its effectuation must be left to the medical judgment of the pregnant woman's attending physician. (b) For the stage subsequent to approximately the end of the first trimester, the State, in promoting its interest in the health of the mother, may, if it chooses, regulate the abortion procedure in ways that are reasonably related to maternal health. (c) For the stage subsequent to viability the State, in promoting its interest in the potentiality of human life, may, if it chooses, regulate, and even proscribe, abortion except where necessary, in appropriate medical judgment, for the preservation of the life or health of the mother.